



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

SEP 14 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 8811
(SECOND REVISION)

EXPIRATION DATE: August 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Hercules Inc.
Wilmington, DE
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of the material in paragraph 6 below in non-DOT specification cargo tanks made of titanium. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243 in that a non-DOT specification cargo tank is not authorized, except as prescribed herein.
5. BASIS: This exemption is based on the application of Hercules Inc., dated August 21, 2000, submitted in accordance with § 107.109.

SEP 14 2000

Continuation DOT-E 8811 (2nd rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chloroacetic acid, solution	6.1	UN1750	II

7. SAFETY CONTROL MEASURES: Packaging prescribed is an insulated non-DOT specification cargo tank fabricated of Titanium (SB 265, Grade 2) in compliance with the ASME code and DOT MC 312 (§ 178.343 in effect on October 1, 1990) for a design pressure of 50 psig, except as follows:

a. On the metal certification plate required by § 178.340-10(b), the specification identification must show "DOT-E 8811" in place of MC 312.

b. Each tank must comply with the Heil Company's drawing A680 E 2192 dated March 5, 1982 on file with the Office of Hazardous Materials Exemptions and Approvals.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each cargo tank must be reinspected and retested once every 2 years in accordance with (§ 177.824 in effect on October 1, 1990) as prescribed for DOT specification MC 312 cargo tanks at one and one-half times the design pressure.

d. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background "DOT-E 8811".

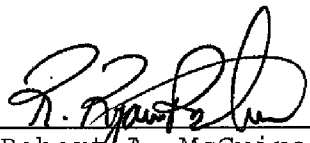
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

SEP 14 2000

(DATE)

SEP 14 2000

Continuation DOT-E 8811 (2nd rev.)

Page 4

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: AM